

no operation at law but must be enforced in equity. This decision has been found much fault with. The Master of the Rolls said that before the case in the Exchequer he had considered the law to be that a charge of debts gave the *executors* an implied power of sale (*d*); for otherwise, it is argued, in the case of a charge where the estate descends, there can be no sale without the aid of the Court. But this does not appear to follow. If a testator *expressly direct that his estate shall be sold* (without naming the person), and the fund is to be distributed in a way in which the executors alone can distribute it, a power of sale is given to the executors by implication over the legal estate even in Courts of law (*e*). By analogy to this, where there is no direction to sell, but only a charge of debts, this last, though an *umbra* in a Court of law, creates an *equitable* power of sale or mortgage in the view of a Court of Equity — *i.e.*, the executor may contract for the sale, and on the acceptance of the title by the purchaser, the person in whom the legal estate is vested will, as being a trustee for the executor, be compellable to convey as the executor directs, and if he refuses, the legal estate may be vested in the purchaser by the aid of the Trustee Acts (*f*). In *Gosling v. Carter* (*g*), Vice-Chancellor Knight Bruce declined to give an opinion whether a mere charge of debts gave to the executors a power of sale either at law or in equity, but would not compel a purchaser to take the title from the *executor without the concurrence of the heir-at-law. In *Robinson v. Lowater* (*a*) the legal estate was already in the purchaser, so that the legal question did not arise, but it was held that the executors had given the purchaser a good title. In *Eidsforth v. Armstead* (*b*), Vice-Chancellor Wood professed

(*d*) *Robinson v. Lowater*, 17 Beav. 601; and see *Wrigley v. Sykes*, 21 Beav. 337; *Storry v. Walsh*, 18 Beav. 568; *Sabin v. Heape*, 27 Beav. 553; *Hodkinson v. Quinn*, 1 J. & H. 309; *Cook v. Dawson*, 29 Beav. 123; 3 De G. F. & J. 127; *Greetham v. Colton*, 34 Beav. 615; *Hamilton v. Buckmaster*, 12 Jur. N. S. 986.

(*e*) *Forbes v. Peacock*, 11 M. & W.

630; *Tylden v. Hyde*, 2 S. & S. 238; *Bentham v. Wiltshire*, 4 Madd. 44.

(*f*) See *Re Wise*, 5 De G. & Sm. 415; *Hodkinson v. Quinn*, 1 J. & H. 303.

(*g*) 1 Coll. 650, 652.

(*a*) 17 Beav. 592; 5 De G. M. & G. 272; and see *Storry v. Walsh*, 18 Beav. 568.

(*b*) 2 K. & J. 333. It does not